

Vishal Laxmanrao Gadewar And 3 Others vs State Of Maharashtra Thr. Pso Ps ... on 24 August, 2022

Author: Manish Pitale

Bench: Manish Pitale

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924.APL.854.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH AT NAGPUR

CRIMINAL APPLICATION (APL) NO.854/2020
Vishal Laxmanrao Gadewar & Ors.
Vs.

State of Maharashtra, through P.S.O. Police Station Yavatmal City, Yavatmal & Anr.

Office Notes, Office Memoranda of Coram, Court's or Judge's orders
appearances, Court's orders of directions
and Registrar's orders

Mr. U.J. Deshpande, Advocate for the Applicants.
Mr. A.S. Fulzele, Addl. P.P. for Non-applicant No.1/State.
Mr. R.S. Gade, Advocate h/f. Mr. V.D. Darne, Advocate for Non-app
No.2.

CORAM : MANISH PITALE AND
VALMIKI SA MENEZES, JJ.

DATED : 24th AUGUST, 2022.

By this application, the applicants are seeking quashing of First Information Report No.540/2020 dated 05.11.2020, registered at Police Station Yavatmal City in District Yavatmal, for offence under Section 498-A read with Section 34 of the Indian Penal Code.

2. The FIR stood registered on the basis of written report submitted by non-applicant No.2 and the grievance of non-applicant No.2 was essentially concerning a matrimonial dispute with the applicant No.1, who is her husband. The applicant Nos.2 and 3 are the father-in-law and mother-in-law and applicant No.4 is the sister-in-law of the non-applicant No.2.

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3. In this case, notice was issued on 22.12.2020 and this Court directed that the investigation may go on, but the charge-sheet shall not be filed without the leave of this Court.

4. During the pendency of the present application, the applicant No.1 and non-applicant No.2 settled their mutual dispute and decided to put an end to all the litigations, pending between them. In fact, the said parties filed a petition for grant of divorce by mutual consent, under Section 13-B of the Hindu Marriage Act, 1955.

5. On 15.07.2022, the Competent Family Court at Yavatmal, passed a divorce decree on the basis of the said petition, as a consequence of which, their marriage has been dissolved. We are informed that all other proceedings pending between the parties also came to an end, except the present application, which is pending before this Court.

6. The parties have remained present in this Court on earlier occasions and in that backdrop on 11.08.2022, this Court directed that although the parties may not remain present, it would be appropriate that the non-applicant No.2 places on record an affidavit, stating the factum of settlement of all the disputes between the parties and she having no objection to the present application being allowed.

7. Accordingly, an affidavit dated 20.08.2022, sworn by the non-applicant No.2, has been filed in this Court in the

-3- 924.APL.854.2020.odt present application. The non-applicant No.2 has stated in detail as to manner in which the disputes have been resolved and further that she no longer has any grievance against the applicants and further that she has no objection to the subject FIR being quashed.

8. The Hon'ble Supreme Court in the case of Gian Singh Vs. State of Punjab and another reported in 2012(10) SC 303, has held that FIRs of such nature arising from matrimonial disputes can be quashed by the High Court by exercising power under Section 482 of the Cr.P.C., in the event, the parties mutually settle their disputes. It is laid down that if ends of justice are met and abuse of the process is to be avoided, such orders can be passed, particularly because the chances of conviction are rendered remote and bleak.

9. We are of the opinion that the facts of the present case are completely covered under the position of law laid down by the Hon'ble Supreme Court in the aforesaid judgment and accordingly, we are inclined to allow the present application.

10. Accordingly, the application is allowed in terms of prayer Clause (i), which reads as follows:

i. allow this application and the First Information Report dated 05/11/2020 in Crime No. 0540/2020 for the offence punishable under Section 498A r/w 34 of IPC registered against applicants no. 1 to 4 by non-applicant no. 1 at Yavatmal City Police Station, Yavatmal at the behest of complaint lodged by non-

applicant no. 2 for the offence punishable under

-4- 924.APL.854.2020.odt Section 498-A of IPC may kindly be quashed, being an abuse of process of law, in the interest of justice. (ANNEXURE A):

11. Pending applications, if any, stand disposed of.

(VALMIKI SA MENEZES, J.) (MANISH PITALE, J.) Vijay Digitally Signed By:VIJAY KUMAR
Personal Assistant to Hon'ble JUDGE Signing Date:26.08.2022 13:07